

Directive 2001/83/EC - Medicinal Product Advertising Rules

Article 86

Title: Definition and Scope of Medicinal Product Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 86, 2001, as amended/consolidated

Plain English Summary:

Article 86 defines advertising of medicinal products broadly as activities intended to promote the prescription, supply, sale or consumption of medicinal products. It includes advertising to the public and healthcare professionals, sales-representative visits, samples, promotional benefits and sponsorship of promotional or scientific meetings.

This matters for an Ayurvedic product because once the product is legally treated as a medicinal product, promotional activities may fall under these EU advertising rules.

The Exact Legal Text:

Article 86

1. For the purposes of this Title, 'advertising of medicinal products' shall include any form of door-to-door information, canvassing activity or inducement designed to promote the prescription, supply, sale or consumption of medicinal products; it shall include in particular:

the advertising of medicinal products to the general public,

advertising of medicinal products to persons qualified to prescribe or supply them,

visits by medical sales representatives to persons qualified to prescribe medicinal products,

the supply of samples,

the provision of inducements to prescribe or supply medicinal products by the gift, offer or promise of any benefit or bonus, whether in money or in kind, except when their intrinsic value is minimal,

sponsorship of promotional meetings attended by persons qualified to prescribe or supply medicinal products,

sponsorship of scientific congresses attended by persons qualified to prescribe or supply medicinal products and in particular payment of their travelling and accommodation expenses in connection therewith.

2. The following are not covered by this Title:

the labelling and the accompanying package leaflets, which are subject to the provisions of Title V,

correspondence, possibly accompanied by material of a non-promotional nature, needed to answer a specific question about a particular medicinal product,

factual, informative announcements and reference material relating, for example, to pack changes, adverse-reaction warnings as part of general drug precautions, trade catalogues and price lists, provided they include no product claims,

information relating to human health or diseases, provided that there is no reference, even indirect, to medicinal products.

Keywords/Triggers:

EU medicinal advertising, Ayurvedic product advertising, herbal medicine promotion, medicinal product claims, healthcare advertising, medicine samples, pharmaceutical promotion

Article 87

Title: General Principles for Medicinal Product Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 87, 2001, as amended/consolidated

Plain English Summary:

Medicinal products that do not have the required marketing authorization cannot be advertised. Advertising must be consistent with the product's approved characteristics, encourage rational use and must not be misleading.

For an Ayurvedic company, this means you should not promote a product as an EU medicinal product before the necessary authorization, and promotional claims must match its authorized characteristics.

The Exact Legal Text:

Article 87

1. Member States shall prohibit any advertising of a medicinal product in respect of which a marketing authorization has not been granted in accordance with Community law.
2. All parts of the advertising of a medicinal product must comply with the particulars listed in the summary of product characteristics.
3. The advertising of a medicinal product:

shall encourage the rational use of the medicinal product, by presenting it objectively and without exaggerating its properties,

shall not be misleading.

Keywords/Triggers:

medicine advertising authorization, EU advertising approval, Ayurvedic medicinal claims, misleading health claims, rational medicine advertising, medicinal product authorization, EU herbal advertising

Article 88

Title: Advertising Restrictions for Medicinal Products

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 88, 2001, as amended/consolidated

Plain English Summary:

Certain medicinal products cannot be advertised directly to the general public, particularly prescription-only medicines and products containing certain internationally controlled substances. Non-prescription medicines may generally be advertised to the public if they are intended for use without medical intervention, subject to the applicable rules.

This is relevant when determining whether an Ayurvedic medicinal product can be promoted directly to consumers in the EU.

The Exact Legal Text:

Article 88

1. Member States shall prohibit the advertising to the general public of medicinal products which:
 - (a) are available on medical prescription only, in accordance with Title VI;

(b) contain substances defined as psychotropic or narcotic by international convention, such as the United Nations Conventions of 1961 and 1971.

2. Medicinal products may be advertised to the general public which, by virtue of their composition and purpose, are intended and designed for use without the intervention of a medical practitioner for diagnostic purposes or for the prescription or monitoring of treatment, with the advice of the pharmacist, if necessary.
3. Member States shall be entitled to ban, on their territory, advertising to the general public of medicinal products the cost of which may be reimbursed.
4. The prohibition contained in paragraph 1 shall not apply to vaccination campaigns carried out by the industry and approved by the competent authorities of the Member States.
5. The prohibition referred to in paragraph 1 shall apply without prejudice to Article 14 of Directive 89/552/EEC.
6. Member States shall prohibit the direct distribution of medicinal products to the public by the industry for promotional purposes.

Keywords/Triggers:

EU public advertising, prescription medicine advertising, OTC herbal advertising, Ayurvedic consumer advertising, medicinal product promotion, direct distribution, EU advertising restrictions

Article 89

Title: Mandatory Information in Public Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 89, 2001, as amended/consolidated

Plain English Summary:

Advertising directed at the general public must clearly be identifiable as advertising and clearly identify the medicinal product. It must provide minimum information, including the product name, information needed for correct use and an instruction to read the package leaflet or packaging.

This is directly useful for an Ayurvedic medicinal product advertised to EU consumers.

The Exact Legal Text:

Article 89

1. Without prejudice to Article 88, all advertising to the general public of a medicinal product shall:
 - (a) be set out in such a way that it is clear that the message is an advertisement and that the product is clearly identified as a medicinal product;
 - (b) include the following minimum information:
 - the name of the medicinal product, as well as the common name if the medicinal product contains only one active substance,
 - the information necessary for correct use of the medicinal product,
 - an express, legible invitation to read carefully the instructions on the package leaflet or on the outer packaging, as the case may be.
2. Member States may decide that the advertising of a medicinal product to the general public may, notwithstanding paragraph 1, include only the name of the medicinal product or its international non-proprietary name, where this exists, or the trademark if it is intended solely as a reminder.

Keywords/Triggers:

EU public medicine advertising, medicinal advertising information, Ayurvedic product advertisement, herbal medicine advertisement, package leaflet advertising, medicine name advertising

Article 90

Title: Prohibited Claims in Public Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 90, 2001, as amended/consolidated

Plain English Summary:

Article 90 prohibits numerous types of consumer-facing medicinal advertising claims. These include claims that treatment is unnecessary, that the medicine has guaranteed effects, that it is safer because it is natural, or that it is equivalent to another treatment.

This is particularly important for Ayurveda, because claims such as “100% natural, therefore completely safe” could fall within the prohibited type of advertising described here when the product is being advertised as a medicinal product.

The Exact Legal Text:

Article 90

The advertising of a medicinal product to the general public shall not contain any material which:

- (a) gives the impression that a medical consultation or surgical operation is unnecessary, in particular by offering a diagnosis or by suggesting treatment by mail;
- (b) suggests that the effects of taking the medicine are guaranteed, are unaccompanied by adverse reactions or are better than, or equivalent to, those of another treatment or medicinal product;
- (c) suggests that the health of the subject can be enhanced by taking the medicine;
- (d) suggests that the health of the subject could be affected by not taking the medicine; this prohibition shall not apply to the vaccination campaigns referred to in Article 88(4);
- (e) is directed exclusively or principally at children;
- (f) refers to a recommendation by scientists, health professionals or persons who are neither of the foregoing but who, because of their celebrity, could encourage the consumption of medicinal products;
- (g) suggests that the medicinal product is a foodstuff, cosmetic or other consumer product;
- (h) suggests that the safety or efficacy of the medicinal product is due to the fact that it is natural;
- (i) could, by a description or detailed representation of a case history, lead to erroneous self-diagnosis;
- (j) refers, in improper, alarming or misleading terms, to claims of recovery;
- (k) uses, in improper, alarming or misleading terms, pictorial representations of changes in the human body caused by disease or injury, or of the action of a medicinal product on the human body or parts thereof.

Keywords/Triggers:

natural medicine advertising, Ayurvedic advertising claims, misleading herbal claims, guaranteed cure claim, natural safety claim, medicinal advertising restrictions, EU health claims

Article 91

Title: Advertising to Healthcare Professionals

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 91, 2001, as amended/consolidated

Plain English Summary:

Advertising medicinal products to people qualified to prescribe or supply them must include essential information consistent with the product's approved characteristics and its supply classification. Member States may also require price and reimbursement information.

This applies to promotion of an Ayurvedic medicinal product to EU doctors, pharmacists or other qualified suppliers.

The Exact Legal Text:

Article 91

1. Any advertising of a medicinal product to persons qualified to prescribe or supply such products shall include:

essential information compatible with the summary of product characteristics;

the supply classification of the medicinal product.

Member States may also require such advertising to include the selling price or indicative price of the various presentations and the conditions for reimbursement by social security bodies.

2. Member States may decide that the advertising of a medicinal product to persons qualified to prescribe or supply such products may, notwithstanding paragraph 1, include only the name of the medicinal product, or its international non-proprietary name, where this exists, or the trademark, if it is intended solely as a reminder.

Keywords/Triggers:

healthcare professional advertising, EU doctor advertising, pharmacist advertising, medicinal product promotion, summary of product characteristics, supply classification, Ayurvedic medicine promotion

Article 92

Title: Scientific Documentation Used in Medicinal Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 92, 2001, as amended/consolidated

Plain English Summary:

Promotional documentation provided to healthcare professionals must contain the minimum information required by Article 91 and identify when it was prepared or last revised. Its information must be accurate, current, verifiable and sufficiently complete to allow the recipient to assess the medicinal product's therapeutic value.

The Exact Legal Text:

Article 92

1. Any documentation relating to a medicinal product which is transmitted as part of the promotion of that product to persons qualified to prescribe or supply it shall include, as a minimum, the particulars listed in Article 91(1) and shall state the date on which it was drawn up or last revised.
2. All the information contained in the documentation referred to in paragraph 1 shall be accurate, up-to-date, verifiable and sufficiently complete to enable the recipient to form his or her own opinion of the therapeutic value of the medicinal product concerned.
3. Quotations as well as tables and other illustrative matter taken from medical journals or other scientific works for use in the documentation referred to in paragraph 1 shall be faithfully reproduced and the precise sources indicated.

Keywords/Triggers:

medicinal advertising evidence, scientific advertising claims, healthcare professional materials, therapeutic value evidence, pharmaceutical promotional documents, EU herbal evidence

Article 94

Title: Gifts and Benefits in Medicinal Promotion

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 94, 2001, as amended/consolidated

Plain English Summary:

When medicinal products are promoted to healthcare professionals, gifts or financial/in-kind benefits generally cannot be offered unless they are inexpensive and relevant to medical or pharmacy practice. Hospitality at promotional events must remain limited to the main purpose of the event.

This matters to Ayurvedic companies promoting medicinal products to EU healthcare professionals.

The Exact Legal Text:

Article 94

1. Where medicinal products are being promoted to persons qualified to prescribe or supply them, no gifts, pecuniary advantages or benefits in kind may be supplied, offered or promised to such persons unless they are inexpensive and relevant to the practice of medicine or pharmacy.
2. Hospitality at sales promotion events shall always be strictly limited to their main purpose and must not be extended to persons other than health-care professionals.
3. Persons qualified to prescribe or supply medicinal products shall not solicit or accept any inducement prohibited under paragraph 1 or contrary to paragraph 2.
4. Existing measures or trade practices in Member States relating to prices, margins and discounts shall not be affected by paragraphs 1, 2 and 3.

Keywords/Triggers:

EU pharmaceutical gifts, healthcare professional inducements, Ayurvedic doctor promotion, medicinal product benefits, promotional hospitality, pharmaceutical compliance

ARTICLE 95

Title: Hospitality at Professional and Scientific Events

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 95, 2001, as amended/consolidated

Plain English Summary:

Hospitality may be provided at events that are purely professional and scientific, but it must be limited strictly to the main scientific purpose of the event. It cannot be extended to people who are not healthcare professionals.

For an Ayurvedic company marketing a medicinal product in the EU, hospitality connected with professional or scientific promotional events must therefore remain limited and compliant with these conditions.

The Exact Legal Text:

Article 95

The provisions of Article 94(1) shall not prevent hospitality being offered, directly or indirectly, at events for purely professional and scientific purposes; such hospitality shall always be strictly limited to the main scientific objective of the event; it must not be extended to persons other than health-care professionals.

Keywords/Triggers:

EU event hospitality, Ayurvedic medicinal product events, healthcare professional hospitality, scientific events, pharmaceutical hospitality, promotional events, healthcare professionals

ARTICLE 96

Title: Conditions for Free Medicinal Samples

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 96, 2001, as amended/consolidated

Plain English Summary:

Free medicinal samples may only be supplied exceptionally to people qualified to prescribe them and must meet several conditions. These include limits on the number of samples, a written request, record-keeping and control, appropriate labelling, accompanying product information and a prohibition on samples containing certain psychotropic or narcotic substances.

For an Ayurvedic medicinal product classified as a medicinal product in the EU, these rules can affect whether and how samples may be distributed to prescribers.

The Exact Legal Text:

Article 96

1. Free samples shall be provided on an exceptional basis only to persons qualified to prescribe them and on the following conditions:
 - (a) the number of samples for each medicinal product each year on prescription shall be limited;
 - (b) any supply of samples shall be in response to a written request, signed and dated, from the prescribing agent;
 - (c) those supplying samples shall maintain an adequate system of control and accountability;
 - (d) each sample shall be no larger than the smallest presentation on the market;
 - (e) each sample shall be marked 'free medical sample — not for sale' or shall show some other wording having the same meaning;
 - (f) each sample shall be accompanied by a copy of the summary of product characteristics;
 - (g) no samples of medicinal products containing psychotropic or narcotic substances within the meaning of international conventions, such as the United Nations Conventions of 1961 and 1971, may be supplied.
2. Member States may also place further restrictions on the distribution of samples of certain medicinal products.

Keywords/Triggers:

free medicinal samples, Ayurvedic medicine samples, sample distribution EU, sample labelling, prescription samples, free medical sample, medicinal sample restrictions

ARTICLE 97

Title: Monitoring and Enforcement of Medicinal Product Advertising

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 97, 2001, as amended/consolidated

Plain English Summary:

EU Member States must have effective systems for monitoring medicinal product advertising and must provide legal mechanisms for challenging advertising that violates the advertising

rules. Authorities and courts can order misleading advertising to stop or prevent its publication, including in situations where actual loss or damage has not yet occurred.

For an Ayurvedic company, advertising a medicinal product in the EU can therefore be subject to monitoring and enforcement, particularly where advertising is misleading or inconsistent with the Directive.

The Exact Legal Text:

Article 97

1. Member States shall ensure that there are adequate and effective methods to monitor the advertising of medicinal products. Such methods, which may be based on a system of prior vetting, shall in any event include legal provisions under which persons or organizations regarded under national law as having a legitimate interest in prohibiting any advertisement inconsistent with this Title, may take legal action against such advertisement, or bring such advertisement before an administrative authority competent either to decide on complaints or to initiate appropriate legal proceedings.
2. Under the legal provisions referred to in paragraph 1, Member States shall confer upon the courts or administrative authorities powers enabling them, in cases where they deem such measures to be necessary, taking into account all the interests involved, and in particular the public interest:

to order the cessation of, or to institute appropriate legal proceedings for an order for the cessation of, misleading advertising, or

if misleading advertising has not yet been published but publication is imminent, to order the prohibition of, or to institute appropriate legal proceedings for an order for the prohibition of, such publication,

even without proof of actual loss or damage or of intention or negligence on the part of the advertiser.

3. Member States shall make provision for the measures referred to in the second subparagraph to be taken under an accelerated procedure, either with interim effect or with definitive effect.

It shall be for each Member State to decide which of the two options set out in the first subparagraph to select.

4. Member States may confer upon the courts or administrative authorities powers enabling them, with a view to eliminating the continuing effects of misleading advertising the cessation of which has been ordered by a final decision:

to require publication of that decision in full or in part and in such form as they deem adequate,

to require in addition the publication of a corrective statement.

5. Paragraphs 1 to 4 shall not exclude the voluntary control of advertising of medicinal products by self-regulatory bodies and recourse to such bodies, if proceedings before such bodies are possible in addition to the judicial or administrative proceedings referred to in paragraph 1.

Keywords/Triggers:

EU advertising monitoring, misleading Ayurvedic advertising, medicinal advertising enforcement, advertising complaints, pharmaceutical advertising compliance, corrective advertising, EU advertising penalties

ARTICLE 98

Title: Marketing Authorisation Holder's Advertising Responsibilities

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 98, 2001, as amended/consolidated

Plain English Summary:

A marketing authorisation holder must establish a scientific service responsible for information about the medicinal products it markets. The company must keep records of its advertisements, ensure that advertising complies with the Directive, train its medical sales representatives properly, cooperate with monitoring authorities and comply with their decisions.

For an Ayurvedic company holding an EU marketing authorisation, this creates internal compliance and documentation responsibilities for medicinal-product advertising.

The Exact Legal Text:

Article 98

1. The marketing authorization holder shall establish, within his undertaking, a scientific service in charge of information about the medicinal products which he places on the market.
2. The marketing authorization holder shall:

keep available for, or communicate to, the authorities or bodies responsible for monitoring advertising of medicinal products, a sample of all advertisements

emanating from his undertaking together with a statement indicating the persons to whom it is addressed, the method of dissemination and the date of first dissemination,

ensure that advertising of medicinal products by his undertaking conforms to the requirements of this Title,

verify that medical sales representatives employed by his undertaking have been adequately trained and fulfill the obligations imposed upon them by Article 93(2) and (3),

supply the authorities or bodies responsible for monitoring advertising of medicinal products with the information and assistance they require to carry out their responsibilities,

ensure that the decisions taken by the authorities or bodies responsible for monitoring advertising of medicinal products are immediately and fully complied with.

3. The Member States shall not prohibit the co-promotion of a medicinal product by the holder of the marketing authorisation and one or more companies nominated by him.

Keywords/Triggers:

marketing authorisation holder, Ayurvedic advertising compliance, scientific service, medicinal advertisement records, medical sales representatives, EU advertising compliance, co-promotion

ARTICLE 99

Title: Enforcement and Penalties for Advertising Violations

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 99, 2001, as amended/consolidated

Plain English Summary:

EU Member States must take appropriate measures to ensure that the medicinal-product advertising rules are followed. Each Member State determines the penalties that apply when these requirements are violated.

For an Ayurvedic company selling medicinal products in the EU, this means non-compliance with the advertising rules can lead to penalties under the relevant Member State's implementing laws.

The Exact Legal Text:**Article 99**

Member States shall take the appropriate measures to ensure that the provisions of this Title are applied and shall determine in particular what penalties shall be imposed should the provisions adopted in the execution of Title be infringed.

Keywords/Triggers:

EU medicinal advertising penalties, Ayurvedic advertising violation, pharmaceutical advertising enforcement, EU compliance penalties, medicinal product law violations, advertising sanctions, Member State penalties